
DATA RETENTION

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SCENARIO

Ashton has been informed that her organisation needs to place a legal hold on information related to pending litigation. What action should she take to place the hold?

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SCENARIO

- A. Restore the files from backups so that they match the dates of the hold request.
- B. Search for all files related to the litigation and provide them immediately to opposing counsel.
- C. Delete all the files named in the legal hold to limit the scope of litigation.
- D. Identify scope files and preserve them until they need to be produced.

OBJECTIVES OF DATA RETENTION

Operational needs: Ensures data availability to support daily operations.

Compliance requirements: Drives policies for handling sensitive, regulated data (e.g., PII, healthcare, financial).

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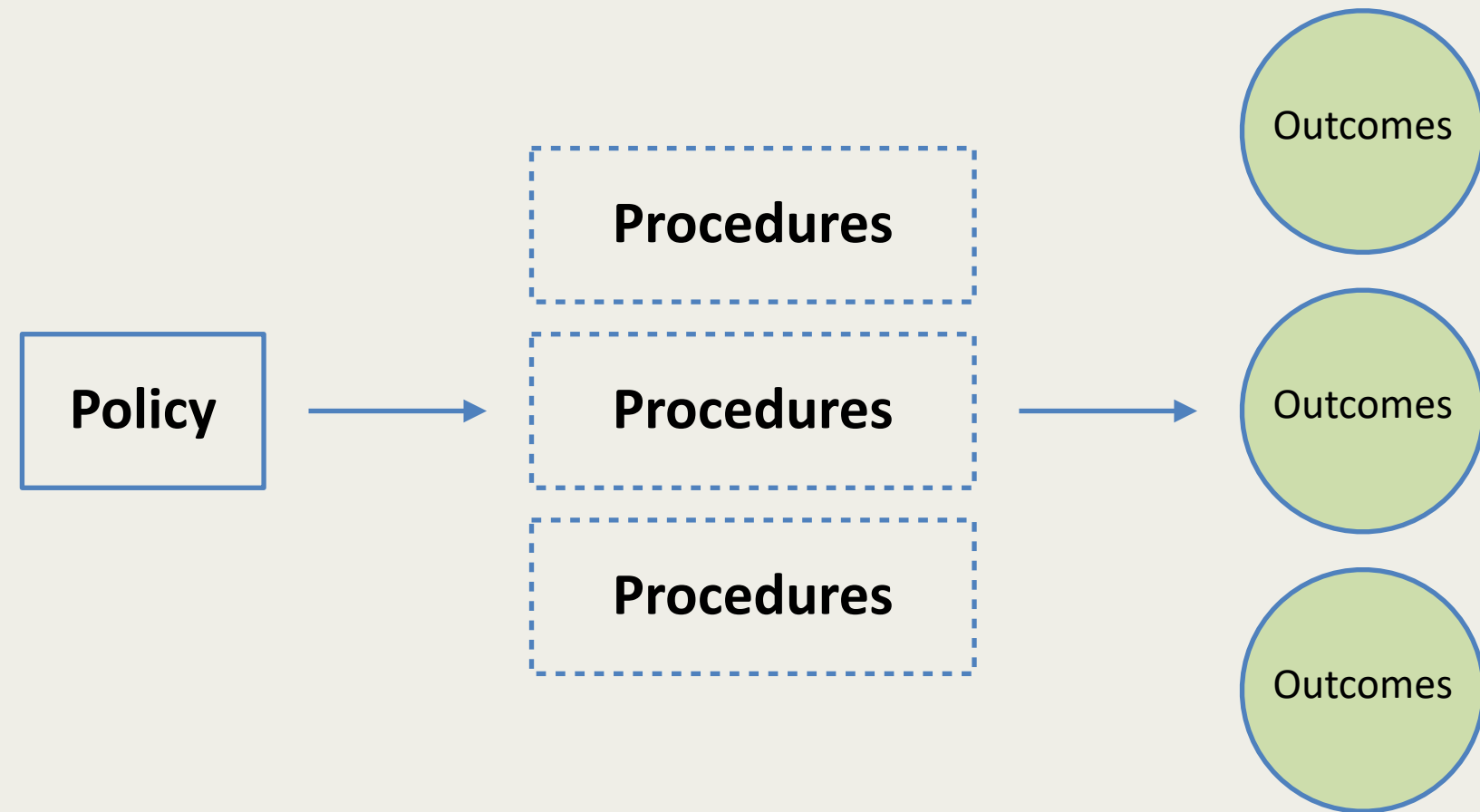
DATA RETENTION PRACTICES

Retention policies:

Specifies what data is retained and why.

Documented procedures:

Details how retention goals are achieved.



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DATA RETENTION PRACTICES

Schedules: Define how long data must be retained.

Data labels: Help identify records for deletion when no longer required.

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DATA RETENTION PRACTICES

Data integrity:

- Verifies data upon writing and periodically thereafter.
- Protects against environmental factors like heat and humidity.

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DATA RETENTION PRACTICES

Data retrieval procedures:

- Define requirements by user roles.
- Ensure proper authorisation and accountability.

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DATA RETENTION PRACTICES

Managing data formats:

- Consider program, app, and hardware requirements.
- Plan for file format and hardware obsolescence.
- Store and protect encryption keys.

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LEGAL HOLD

Understanding legal hold:

- Suspends retention schedules.
- **Challenges:**
 - Identifying applicable records.
 - Preventing deletion of flagged records.
 - Using metadata to electronically flag records.
 - Managing encryption keys for flagged data.

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LEGAL HOLD

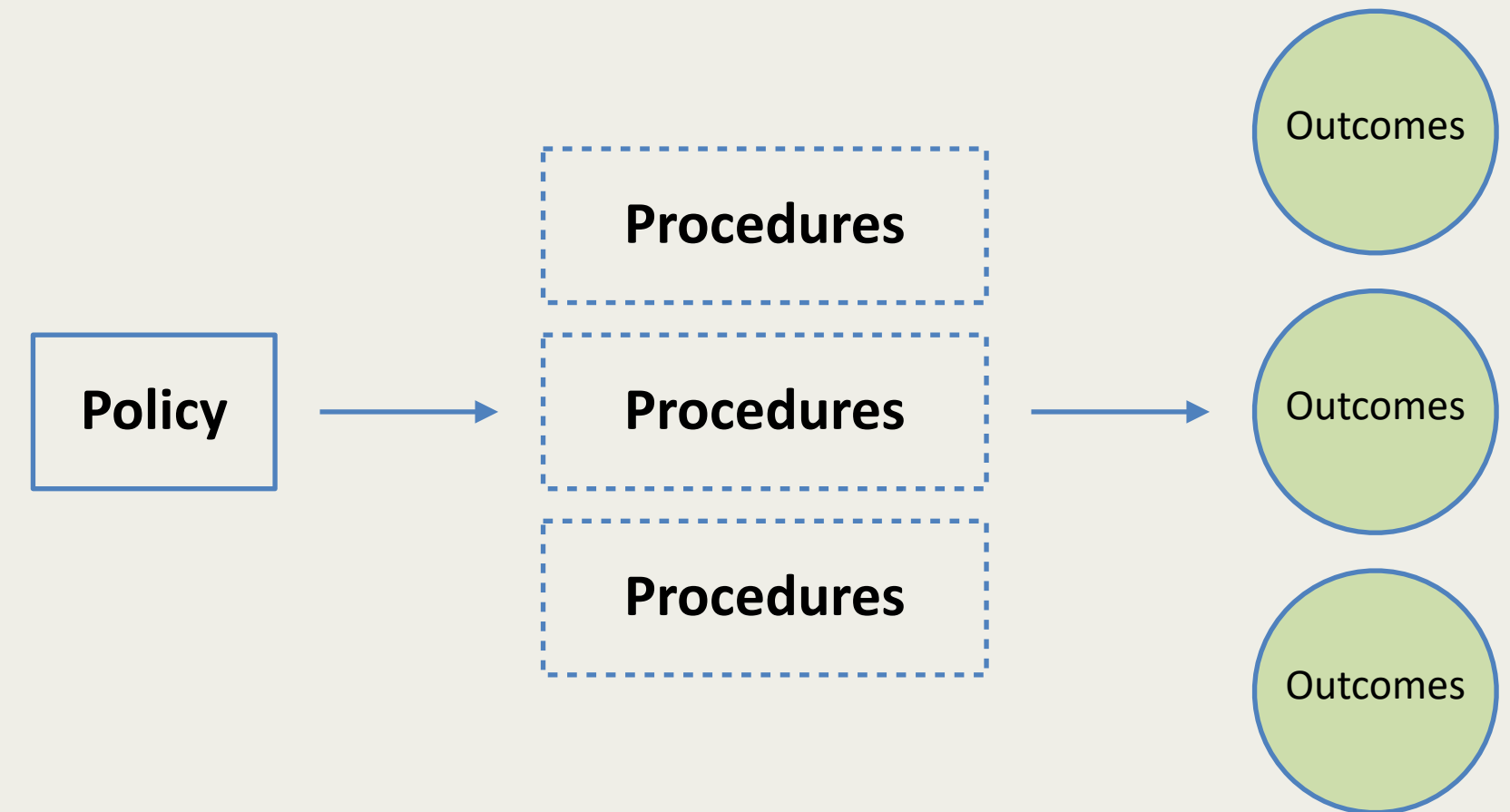
Legal hold and eDiscovery:

- Records under legal hold are part of eDiscovery.
- eDiscovery investigates suspected wrongdoing or noncompliance.

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SUMMARY: DATA RETENTION

- Data retention aligns with operational and compliance needs.
- Policies, schedules, and procedures ensure effective practices.
- Legal hold is critical for responding to legal actions.



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